

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

September 11, 2023

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers and via electronic conference meeting. Present were: MAYOR – Patrick Collins, COUNCIL MEMBERS – Dr. Michelle Aldrich, Bryan Cook, Ken Esquibel, Richard Johnson, Pete Laybourn, Dr. Mark Rinne, Scott Roybal, Tom Segrave and Jeff White. Also present: Kris Jones, City Clerk. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda. Upon request by Mr. Cook, and pursuant to support received by Mr. Esquibel and Mr. White, item #19 was removed from the Consent Agenda. Upon request by Mr. Laybourn, and pursuant to support received by Mr. White and Mr. Segrave, item #25(f) was removed from the Consent Agenda. Mr. Segrave moved to approve remaining items, seconded by Mr. Esquibel. Motion carried. Voting “yes” – all members of the governing body.

[CA] Minutes from Regular Meeting of the Governing Body on August 28, 2023. Motion (per Consent Agenda) carried.

Mayor Collins opened a public hearing to receive public comments and input relating to the Federally Funded Dry Creek Drainage Master Plan Update. Public comments were made by: Harry LaBonde, Jack Palma, Roberta Coates, Ed Heffern, Jeff Geyer, Laramie County Conservation District and Steve Achter. There being no further comments or input, and purpose of the hearing having been met, Mayor Collins closed the public hearing.

ORDINANCE – 3rd READING – Creating a new Section 15.50.070, Neglected Structure, of Chapter 15.50, Historic Design Guideline, of Title 15, Buildings and Construction, of the Municipal Code of the City of Cheyenne, Wyoming. Reporting for Public Services Committee, Mr. Cook advised there was no recommendation from the committee. Mr. Cook moved to approve on third and final reading, seconded by Mr. Johnson. Dr. Rinne moved to amend paragraph B, section 12 to read: Review Committee means a group of three individuals that are nominated by the CHPB and approved by the City’s Governing Body. Their purpose will be to investigate petitions filed with the Director alleging that a violation of this Chapter has occurred and to recommend to the CHPB if further action is necessary. Ideally, the members of the Committee would have a background in Engineering, Real Estate, the Law or knowledge of Cheyenne’s history, seconded by Mr. Johnson. Motion to amend carried. Voting “yes” – all members of the governing body. Main motion as amended failed due to a tie vote. Voting “yes” – Mr. Esquibel, Mr. Johnson, Dr. Rinne, Mr. Roybal and Mr. White. Voting “no” – Dr. Aldrich, Mayor Collins, Mr. Cook, Mr. Laybourn and Mr. Segrave. Public comment was made by: Milward Simpson, Historic Preservation Board. Comments were made by the following members of the governing body: Dr. Aldrich, Mr. Esquibel, Mr. Johnson, Mr. Laybourn, Dr. Rinne, Mr. Segrave and Mr. White.

ORDINANCE –3rd READING – Submitting to the qualified property owners of real property within the boundaries of the Cheyenne Downtown Development Authority District of Cheyenne, Wyoming, excluding real property used exclusively for residential purposes, at a Special Election on Wednesday, October 18, 2023, the following question: ‘Shall a Special Assessment of twenty (20) mills be levied upon the assessed value of real property within the boundaries of the Cheyenne Downtown Development Authority District, excluding real property used exclusively for residential purposes, for a period of four (4) years pursuant to the provisions of Wyo. Stat. § 15-9-217(b) for the purposes of (1) Landscaping or maintenance of public areas; (2) Planning or management of development or improvement activities; (3) Promotion of public events; and (4) Activities in support of business recruitment and development?’. Reporting for Finance Committee, Mr. White moved to approve on third and final reading, seconded by Dr. Aldrich. Motion carried. Voting “yes” – all members of the governing body. Comment was made by the following member of the governing body: Mr. Laybourn. During Mr. Laybourn’s comments, Mayor Collins noted comments weren’t germane to the subject and were out of order. (#4522)

ORDINANCE –3rd READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from Frontier Mall PUD - Planned Unit Development (Ordinance No. 3132) to CB - Community Business for land located at Lot 7B, Block 1, Frontier Mall). Mr. Cook moved to approve on third and final reading, seconded by Mr. Johnson. Motion carried. Voting “yes” – all members of the governing body. (#4523)

ORDINANCE –3rd READING – Pursuant to Section 2.2.2 Planned Development - Regulating Plan or Development Master Plan and Section 5.6.2 PUD - Planned Unit Development District of the Unified Development Code, amending Ordinance No. 4286 by modifying certain standards of the adopted district, Planned Unit Development (PUD), for Sweetgrass (located southeast of the intersection of College Drive and Avenue C). Mr. Cook moved to approve on third and final reading, seconded by Mr. White. Mr. Cook moved to amend by substitute Exhibit A dated September 5, 2023, seconded by Mr. Roybal. Motion to amend by substitute Exhibit A carried. Voting “yes” – all members of the governing body. Main motion as amended by substitute Exhibit A carried. Voting “yes” – all members of the governing body. Comment was made by the following member of the governing body: Mayor Collins. (#4524)

ORDINANCE –2nd READING – Amending Section 5.8.2.h of the Unified Development Code (UDC), amending Manufactured Homes on Single Platted Properties or Tracts. Mr. Cook advised there was no recommendation from Public Services Committee. Mr. Cook moved to approve on second reading, seconded by Mr. Roybal. Mr. White moved to postpone to September 25, 2023, seconded by Dr. Aldrich. Motion to postpone failed. Voting “yes” – Dr. Aldrich and Mr. White. Voting “no” – Mr. Cook, Mr. Esquibel, Mr. Johnson, Mr. Laybourn, Dr. Rinne, Mr. Roybal and Mr. Segrave. Main motion failed. Voting “yes” – Dr. Aldrich, Mr. Esquibel, Mr. Johnson, and Mr. White. Voting “no” – Mr. Cook, Mr. Laybourn, Dr. Rinne, Mr. Roybal and Mr. Segrave. Public comment was made by: Michael White. Comments were made by the following members of the governing body: Dr. Aldrich, Mayor Collins, Mr. Esquibel, Mr. Johnson, Dr. Rinne and Mr. Segrave.

ORDINANCE –2nd READING – Amending Section 15.08.031, Building Permit Fees- Exceptions for Incentivization Program, of Chapter 15.08, International Building Code Adopted, of Title 15, Buildings and Construction, of the Code of the City of Cheyenne, Wyoming, to create incentives for attainable housing and historic preservation. Mr. Cook moved to approve on second

reading, seconded by Mr. Johnson. Mr. Cook moved to amend by substitute dated September 8, 2023, seconded by Mr. White. Motion to amend by substitute carried. Voting “yes” – all members of the governing body. Main motion as amended by substitute carried. Voting “yes” – all members of the governing body. Public comment was made by: Chad Willett, Dan Dorsch, Habitat for Humanity of Laramie County and Michael White. Comments were made by the following members of the governing body: Dr. Aldrich, Mayor Collins, Mr. Johnson and Dr. Rinne.

ORDINANCE –1st READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from MUB Mixed-Use Business Emphasis to P Public District for land located at Lot 1, Block 1, Back 40 Subdivision, Third Filing – referred to Public Services Committee. (Sponsor – Mr. Cook)

ORDINANCE –1st READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from CB Community Business to MUB Mixed-Use Business for land located on Lots 3, 4, 5, 6, 7, and 8, Block 1, Hitching Post Plaza, 3rd Filing – referred to Public Services Committee. (Sponsor – Mr. Cook)

ORDINANCE –1st READING – Amending certain Sections of Chapter 13.20, Wastewater Treatment and Disposal of Title 13, Public Services of the Municipal Code of the City of Cheyenne, Wyoming, regarding wastewater treatment and disposal – referred to Public Services Committee. (Sponsor – Dr. Rinne)

[CA] RESOLUTION – Authorizing the acceptance of a Federal Emergency Management Agency FY 2022 Assistance of Firefighters Grant in the amount of \$387,043.63 and authorizing the contribution of \$38,704.37 from the Fifth and Sixth Penny funds in support of this program, for the purpose of purchasing breathable air fill stations (FEMA AFG Grant). Motion (per Consent Agenda) carried. (#6348)

[CA] RESOLUTION – Supporting the conversion of a portion of Dutcher Ball Fields located at 4200 Converse Avenue from perpetual public outdoor recreation use and committing to purchase and encumber one additional replacement property to be deed restricted for perpetual public outdoor recreation use pursuant to the requirements set forth in the Land and Water Conservation Fund Act. Motion (per Consent Agenda) carried. (#6349)

RESOLUTION – Approving the West Downtown Urban Renewal Plan and West Downtown Urban Renewal Project pursuant to Wyoming Statute § 15-9-110. Mr. Cook moved to adopt, seconded by Mr. Roybal. Motion carried. Voting “yes” – all members of the governing body with the exception of Dr. Aldrich, Mr. Laybourn and Mr. Segrave voting “no”. Comments were made by the following members of the governing body: Dr. Aldrich and Mr. Segrave. (#6350)

RESOLUTION – To accept and approve the federally funded Dry Creek Drainage Master Plan Update submitted by GLM Design Group. Mr. Cook moved to adopt, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body. Public comments were made by: Michael White and Gene MacDonald, GLM Design Group. Comment was made by the following member of the governing body: Mr. Laybourn. (#6351)

[CA] RESOLUTION – Re-appropriating the Fiscal Year 2024 Budget of the City of Cheyenne according to the provisions of W.S. §§16-4-112 & 16-4-113 – referred to Finance Committee. (Sponsor – Mr. White)

[CA] RESOLUTION – Authorizing the Mayor and the City Clerk to sign a Final Plat for Shining D North at Sweetgrass, a replat of all of Block 15 (Lot 1 thru 8 inclusive), and Open Space Tract AA, and all of Lot 1, Block 16, Sweetgrass, 7th Filing, and a portion of adjacent rights-of-way, City of Cheyenne, Laramie County, Wyoming (located east of Sweetgrass Drive and south of E College Drive) – referred to Public Services Committee. (Sponsor – Mr. Cook)

[CA] RESOLUTION – Authorizing the Mayor and the City Clerk to sign a Final Plat for R and R at Sweetgrass, a replat of all of Lots 1, 2, & 3, and Tract T, Block 8, Sweetgrass, 2nd Filing, and a portion of adjacent rights-of-way, City of Cheyenne, Laramie County, Wyoming (located southeast of the intersection of Sweetgrass Drive and E College Drive) – referred to Public Services Committee. (Sponsor – Mr. Cook)

[CA] RESOLUTION – Authorizing the Mayor and the City Clerk to sign a Final Plat for Hitching Post Plaza, 3rd Filing, a replat of Lot 3, Hitching Post Plaza, 2nd Filing, City of Cheyenne, Laramie County, Wyoming (located north of Lincolnway and west of Paul Smith Way) – referred to Public Services Committee. (Sponsor – Mr. Cook)

[CA] RESOLUTION – Expressing the support of the Governing Body for the designation of the High Plains Arboretum as a State Historic Site by the Wyoming State Legislature – referred to Public Services Committee. (Sponsor– Dr. Rinne)

[CA] Real Estate Purchase Agreement between the City of Cheyenne and Trace G. Lewark and Mary J. Lewark for the purchase of real property located at 700 Gettysburg Drive, City of Cheyenne, consisting of approximately 189,921.6 square feet, more or less and associated easement documents (2021 Specific Purpose Option Tax Fund). Motion (per Consent Agenda) carried (in an amount not to exceed \$245,000.00). (#7818)

[CA] Contract between the City of Cheyenne, Office of Youth Alternatives, and Laramie County to provide services for juveniles appearing in the Laramie County Circuit Court and the Municipal Court of the City of Cheyenne for supervised probation, diversion, and the coordination of drug and alcohol services (Revenue to the City). Motion (per Consent Agenda) carried (in the amount of \$76,000.00). (#7819)

[CA] Professional Services Agreement between the City of Cheyenne and Volunteers of American Northern Rockies, Alcohol Receiving Center, to provide alcohol and drug detoxification services (General Fund). Motion (per Consent Agenda) carried (in the amount of \$136,875.00). (#7820)

[CA] Human Services Agreement between the City of Cheyenne and United Way of Laramie County to provide services to various community programs (2023-2026 Optional 1% Sales Tax Fund). Motion (per Consent Agenda) carried (in an amount not to exceed \$750,000.00). (#7821)

[CA] Professional Services Agreement between the City of Cheyenne and Safe Harbor to provide a safe and secure environment to families who have been affected by abuse (General Fund). Motion (per Consent Agenda) carried (in an amount not to exceed \$20,000.00). (#7822)

Professional Services Agreement between the City of Cheyenne and Ayers Associates Inc for the West Crow Creek Greenway Plan (MPO Funds). Mr. White moved to approve in an amount not to exceed \$134,997.54, seconded by Mr. Esquibel. Motion carried. Voting “yes” – all members of the governing body. Comment was made by the following member of the governing body: Mr. Laybourn. (#7823)

[CA] Memorandum of Understanding between the City of Cheyenne and Wyoming Housing Network, Inc. to provide financial assistance relating to the construction of affordable housing for the Robin’s Point Apartments Housing Project (Housing Loans Fund). Motion (per Consent Agenda) carried (in an amount not to exceed \$150,000.00). (#7824)

[CA] Contract between the City of Cheyenne and the Cheyenne Housing Authority to provide supportive senior services (General Fund) – referred to Finance Committee.

[CA] Lease agreement between the City of Cheyenne and GBP, LLC for the property located at 6725 Faith Drive (Recreation Programs Fund) – referred to Finance Committee.

Comments were made by the following members of the governing body related to the Voucher Report: Dr. Aldrich and Mr. Johnson.

Public comment was made by the following individuals under other business: Cade Batchelor and Ron Pinther.

The following members of the governing body made comments under other business: Dr. Aldrich, Mayor Collins, Mr. Esquibel, Mr. Johnson, Mr. Segrave and Mr. White.

There being no further business to come before the governing body, the meeting was officially adjourned at 8:07 p.m.

Submitted by,

Kristina F. Jones,
City Clerk

This notice is available in alternative, accessible formats upon request.

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